

Proposal

Advisory services Tilburg Substation EMC

SC&M II V.O.F.

Customer Reference:

DNV doc No: 00431480-TDT 25-1641

Date of first issue: 2025-09-25

Date of this revision: 2025-09-25



Customer Details/

Customer Name: **SC&M II V.O.F..**
Customer Address: **Marten Meesweg 25, 3068AV Rotterdam**
Customer Reference: **Juriaan Koppes**
Contact Person: Juriaan.koppes@croonwolterdros.nl

DNV Company Details

DNV Legal Entity: **DNV Netherlands B.V.**
DNV Organisation Unit: **Energy Systems**
DNV Address: **Utrechtseweg 310-B50, 6812 AR Arnhem, The Netherlands**
DNV Contact person: **Peet Schutte**
DNV Telephone: **0642195249**
DNV Org. No.: **09006404**

About this document

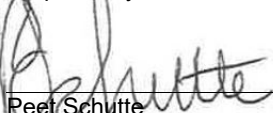
DNV doc. No.: **00431480-TDT 25-1641**
Proposal Title:¹ **Advisory services Tilburg Substation EMC**
Date of first issue: **2025-09-25**
Date of this revision: **2025-09-25**
Validity of proposal: **3 months from date of issue**
Terms and Conditions: **See Section Contractual**

Confidentiality

This proposal contains information that is business sensitive to DNV. No part of the proposal or information received during the proposal process may be used, duplicated or disclosed for any other purpose. Any such use of DNV's information is regarded as an infringement of DNV intellectual property rights.

for DNV Netherlands B.V.

Prepared by:



Peet Schutte
Consultant

Approved by:



Angeliki Papadopoulou
Team Lead

Table of contents

1	INTRODUCTION.....	1
2	THE PROPOSED SOLUTION	2
2.1	Approach	2
2.2	Assumptions and Exclusions	2
2.3	Deliverables	2
3	SCHEDULE.....	3
3.1	Project team	3
4	REMUNERATION, TERMS OF INVOICING, COSTS/EXPENSES	3
5	CONTRACTUAL	4
6	ACCEPTANCE.....	4

Appendix A Short Form Agreement (SFA)

1 INTRODUCTION

DNV proposes to conduct a Conductive influence evaluation for the new Tilburg substation project, with a focus on all metallic objects (for example, pipelines, data cables, fences, low and medium voltage cables). This evaluation is based on the NEN 3654:2023 and EN 50522, applicable to the substation's electromagnetic influence with a specific focus on the conductive influence. The various assets around the substation will be assessed to determine which of them needs further mitigation measures.

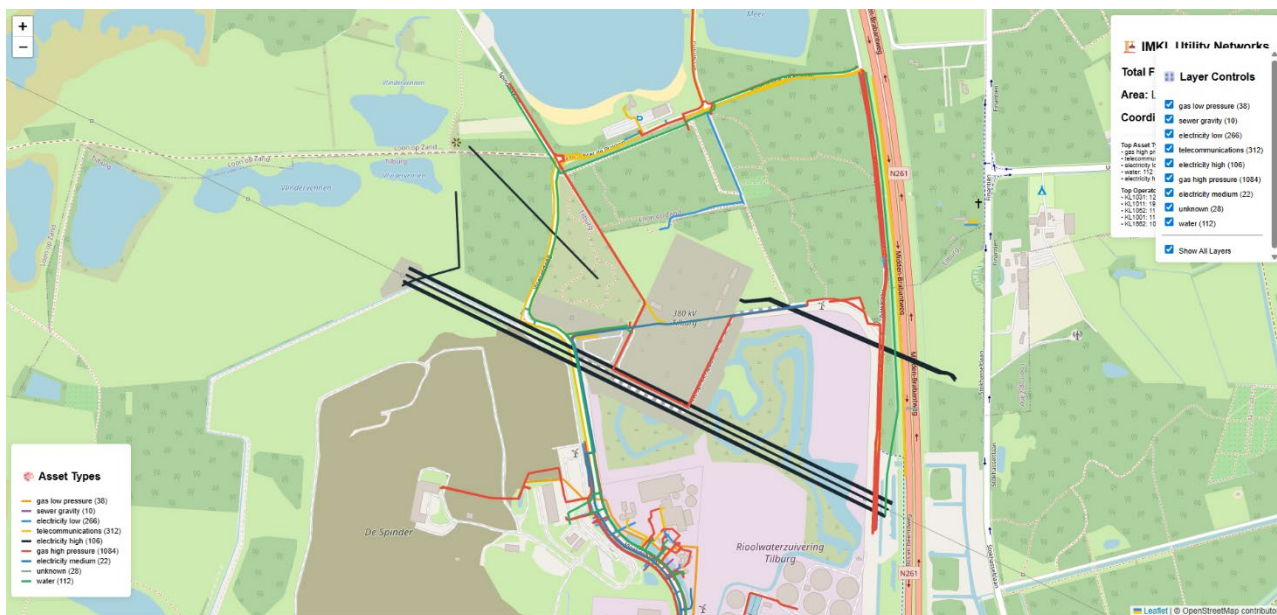


Figure 1: Indicative and example assets around the Tilburg substation location (to be inserted)

Within a 500m radius of the substation, the following assets are included and need to be checked against a more detailed simulation model.

Table 1: Assets and stakeholders possibly impacted and within the Tilburg area - Indicative

Stakeholder	Thema
Attero B.V.	Gas LD, LS, Overig, Riool onder druk, Riool vrijval
Brabant Water	Water
Coöperatie Midden-BrabantGlas U.A.	Data
Enexis Netbeheer B.V.	Gas HD, Gas LD, LS, MS
Eurofiber Nederland B.V.	Data
Fudura B.V.	MS
Gemeente Loon op Zand	Riool onder druk
Gemeente Tilburg, Ruimtelijke Uitvoering	Riool onder druk, Water
KPN B.V.	Data
Odido Netherlands B.V.	Data
Provincie Noord-Brabant Bureau VM	Data
Spinderwind	Data, MS
Tennet Tso	Data, HS, LHS
Ziggo B.V.	Data

2 THE PROPOSED SOLUTION

2.1 Approach

DNV proposes to perform a detailed study to investigate the impact of short circuits within Tilburg substation on nearby 3rd party assets. Conductive coupling can have adverse effects on objects near the substation and therefore requires careful consideration to evaluate if mitigation measures are needed to ensure safety and asset integrity.

A critical part of the study is to model the soil structure to accommodate different soil resistivity values and manage over-conservativeness. TenneT considers the current assumption of 500 ohm*meter to be a worst-case scenario, which has resulted in a robust earthing net. However, this may negatively affect the 'ground potential rise'. Concerns exist that the high resistivity of the deep soil layer results in a calculated station resistance (R_a) of 0.931 Ohm, significantly exceeding the target of 0.1 Ohm.

DNV will prepare a detailed electrode model based on substation design inputs and perform the study using CDEGS /XGSLAB software to evaluate the associated levels of interference. The fault current conducted through the substation earth electrode results in a ground potential rise (GPR), which in turn raises the voltage within the soil. With an injected fault current of 29.1 kA, the GPR could reach 27.1 kV, a level expected to cause issues for surrounding cables and pipelines. This phenomenon will be studied in detail, and the results will be plotted on the terrain and current KLIC data and updated asset locations (such as relocated pipelines) to check nearby assets against their respective limits.

2.2 Assumptions and Exclusions

2.2.1 Assumptions

- The KLIC information is assumed to be appropriate input information that consolidates the assets in the study area.
- Additional information such as relocated pipelines that are not correctly represented in the KLIC, will be provided by Client.
- Assumptions for the short circuit currents feeding into the substation will be based on the earthing study if not obtainable from TenneT.
- Additional information from third parties will be gathered by DNV but is limited to 3 x email reach outs per stakeholder. If DNV does not receive a response within 2 weeks, DNV will assume starting point assumptions. These might include pipeline coating thickness, type, cable layout details, etc. Assumptions will be based on NEN 3654:2023 where possible/appropriate.

2.2.2 Exclusions

- **Mitigation measure design** – Detailed mitigation measures will be limited to 16 hours of work. Beyond this effort, a variation will be sought. It is difficult for DNV to predict how many assets will require mitigation and therefore limits the scope.
- **Field measurements** – A new Wenner measurement is not considered useful due to the already installed earth grid.
- **EMF studies** electrical and magnetic field emissions.
- **Mutual interference/influence calculations/evaluation** with regards to the high voltage connections (power cables / overhead transmission lines).

2.3 Deliverables

EMC influence Report in English - including detailed calculations.

3 SCHEDULE

The timeframe of 14 weeks is expected for completing this phase of the study. This timeframe only accounts for the actual study work performed during the period of this project and does not include delays due to data unavailability or the time taken to review the reports. DNV is always available via email communication to respond to any technical queries pertaining to the scope of work executed as described in the proposal.

The 14 week period includes 2 weeks waiting time for stakeholders to provide information. Project Organization

3.1 Project team

The proposed project setup is outlined in the following figure:

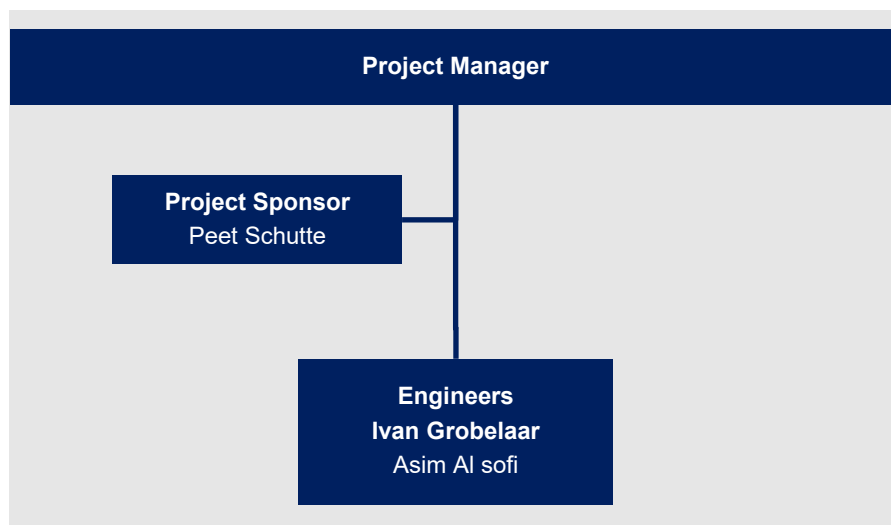


Figure 3-1 DNV project organogram

The resources listed above are based on DNV's current availability schedule. Should project personnel availability change at the time of contract award or during the project execution, DNV will inform the customer of the changes of resources. DNV will aim at finding resources with the same level of competence as the resources listed.

DNV would like to emphasize that we have a large pool of highly qualified engineers/consultants/inspectors available within numerous disciplines. If needed due to changes in the schedule or scope of work, or to resolve additional customer challenges, a significant number of very experienced resources can be mobilized for the project.

4 REMUNERATION, TERMS OF INVOICING, COSTS/EXPENSES

The project will be invoiced on a lump sum basis, adding up to EUR 24, 500.00. Rates and prices provided in this proposal are quoted in Euro and are exclusive of VAT or any other similar taxes.

Invoicing and Payment

Invoicing will be according to the following milestones:

- **30%** at signing of contract
- **30%** at delivery of the initial version of the Report
- **40%** on final version delivery.

Rates and prices provided in this proposal are quoted in EURO and exclusive of VAT or any other similar taxes. Prices are exclusive of any form of withholding tax, sales tax, value added tax (VAT), goods & services tax, custom, excise & stamp duties and/or any other similar taxes including any surcharges levied thereon (hereinafter: Taxes). At contract negotiations it will be determined whether any Taxes will be applicable under the mandatory laws.

If and to the extent Customer must withhold taxes, such as withholding tax, or other governmental charges according to the mandatory laws, Customer shall withhold and deduct such amounts from payments to DNV and pay the amount to the competent tax authority.

If such Taxes are applicable and payable in respect of the prices, DNV retains the right to adjust the prices in such way that the net payments to DNV are equal to the prices as represented.

The contact person(s) shown in the table below will be pleased to answer any queries you may have in respect of this proposal.

Table 4-1 Contact information

Name	Title	Telephone No.	Email
Peet Schutte	Consultant	+31 6 4219 5249	Peet.schutte@dnv.com

5 CONTRACTUAL

DNV has issued the present proposal based on the assumption that the DNV - General Terms and Conditions Advisory Services Energy Systems shall form the contractual basis for this project. The Terms and Conditions are exhibited in Appendix A.

6 ACCEPTANCE

We believe this is an appropriate proposal and we are looking forward to receiving your order. In case you have any questions please contact Peet Schutte, email: peet.schutte@dnv.com tel. 0642195249

Please send the purchase order and this proposal countersigned for acceptance to Salesdesk@dnv.com or by mail to:

DNV Netherlands B.V.
Attn. Department Support (B50)
P.O. Box 9035
6800 ET ARNHEM
The Netherlands



APPENDIX A

Short Form Agreement (SFA)

ADVISORY SERVICES (ENERGY)

Short Form Agreement ("Agreement")

DNV doc. no.:
00431480-TDT 25-1641

Section I – Cover letter

"Customer"

Legal entity: **SC&M II V.O.F.**

Legal entity VAT no.: **NL863290243B01** Customer no. (ID): **10815906**

Contact person: **Juriaan Koppes** Phone/mail: **juriaan.koppes@croonwolterdros.nl**

Business address: **Marten Meesweg 25 3068 AV** Invoicing address: **Marten Meesweg 25 3068 AV**

Is purchase order no. required to process invoice: ☐ No ☐ Yes; P.O. no.: _____

"DNV"

Legal entity: **DNV Netherlands B.V.**

Legal entity VAT no.: **NL003104990B01** DNV order no.: **OPP-00431480**

Contact person: **Peet Schutte** Phone/mail: **peet.schutte@dnv.com**

Business address: **Utrechtseweg 310-B50 6812 AR Arnhem Netherlands**

Work/project

Project name: **Tilburg EMC initial investigation**

Commencement date: **2025-10-12** Contract end date: **2025-12-31**

Work location: **--** Project number (if applicable): _____

Scope of Work (the Work)

See proposal

Remuneration, terms of invoicing, costs/expenses

See proposal

Deliverables

(tick as appropriate)

☒ Report

☐ Other

See proposal

Special conditions

The Special Conditions are set out in the Proposal as attached herewith.

This Agreement shall consist of: Section I – Cover letter, Section II – General Terms and Conditions and the applicable attachments, which together constitute the integrated entire Agreement between the parties, superseding and replacing all prior agreements, understandings or representations relating to the subject matter hereof. The above listed documents in the Agreement shall be interpreted as one agreement and in case of any ambiguities or contradictions between the various documents, the documents shall take precedence in the order listed here: Agreed Special Conditions, General Terms and Conditions, the Cover Letter, and any attachments. No amendment and/or variation to the Agreement shall be considered binding or valid unless set out in writing and duly signed by the authorised representatives of both parties. Any terms and conditions included in any of Customer's purchase orders shall be disregarded unless explicitly agreed to and duly signed by the authorised representatives of both parties as amending specific terms of this Agreement. Should any provision of this Agreement be held to be invalid or unenforceable, such shall not affect the validity or enforceability of any other part or provision of this Agreement. Such provision shall be amended to the extent necessary to make the provision valid and enforceable, while keeping as strictly and closely as possible to the original wording and purpose of the provision. This Agreement is made in duplicate, one original for each party hereto. This Agreement shall be duly signed by the Customer's authorised representative prior to any commencement of the Work, failing which, the Customer acknowledges that DNV is entitled to postpone or cancel the performance of the Work.

Place:

Date: **(yyyy-mm-dd)**

for Customer

Place: **Arnhem, The Netherlands**

Date: **25-09-2025**



for DNV

(NAME and TITLE in capital letters)

Angeliki Papadopoulou
Team Lead Power Systems Planning (PSP) NL

Section II - General Terms and Conditions

1 Work Execution

- 1.1 DNV shall execute the work as described in the Scope of Work section in the Cover Letter in accordance with the provisions of this Agreement, and any agreed applicable rules and standards (the "Work"). The extent of the Work to be performed shall be set out exclusively in the Scope of Work section of the Cover Letter, which in case of ambiguity or incompleteness shall be determined by reference to any proposal or bid made by DNV to the Customer.
- 1.2 Notwithstanding any other references Customer acknowledges that it does not require and will not receive any such advice on which it can rely as to matters of law, taxation or insurance, or any review of the adequacy (except of a technical advisory or engineering nature) of material containing such content or subject matter.
- 1.3 DNV will provide suitably qualified personnel to carry out the Work. Unless otherwise agreed, DNV may at any time substitute personnel assigned to the Work, provided that any replacement personnel are suitable. Customer may set forth any reasonable and reasoned objection against any of DNV's personnel assigned to the Work by written notice. Without undue delay after DNV's receipt of such notice, the parties shall meet and discuss the objections and any measures or reassignment, pending which DNV may without any liability or penalty suspend performance of the Work otherwise to be carried out by the relevant personnel.

2 General Obligations

- 2.1 The parties agree that the proper and timely performance of the Work under this Agreement relies on the parties' effective communication and exchange of relevant information. To this purpose the parties agree to use their reasonable efforts to cooperate in all necessary ways and to develop and maintain open communication and common understanding of the Scope of Work under the Agreement.
- 2.2 Customer agrees that DNV's performance of the Work requires DNV to be granted access and the right to inspect all relevant sites and facilities and the provision of all relevant, correct and complete documents and information. For this purpose, Customer shall in a timely manner make all necessary arrangements and provide DNV with all reasonably necessary access to all the above mentioned information and sites. Unless it is explicitly agreed as part of the Work to identify discrepancies, errors, inconsistencies or omissions in the information provided by the Customer, Customer shall be responsible for the correctness of the information it provides and DNV is entitled to rely on the accuracy and completeness of such information for the performance of the Work.
- 2.3 Customer shall promptly inform DNV of any actual or likely delay in necessary access to relevant sites or facilities, or delay in providing or changes to the information necessary for DNV's performance of the Work. Should Customer fail to provide DNV with the required timely access or necessary information, DNV may inform Customer of the lack of access or insufficient information and may without any liability or penalties suspend the performance of the Work pending receipt of the Customer's instructions for access and/or necessary information.
- 2.4 Customer shall not use or allow the use of DNV's name or Deliverables, in whole or in part, in order to institute claims or to conduct legal proceedings.

3 Assignment of Agreement. Sub-contracting.

- 3.1 Neither party shall, without the prior written consent of the other, assign or purport to assign, or make over or dispose of in any way whatsoever any rights and obligations contained herein or resulting therefrom. This restriction shall not apply for transfer within the parties' respective group of companies. DNV shall be entitled to sub-contract the duties to be undertaken hereunder but shall remain responsible for the carrying out of such duties and shall be liable for the actions of the parties employed by it in accordance with the terms hereof.

4 Health, Safety and Environment (HSE)

- 4.1 Both parties shall employ reasonable standards for promoting safety, health and environmental protection and for ensuring safe working environments for their personnel.
- 4.2 Customer shall inform DNV without undue delay of: (i) any actual or potential HSE risk which Customer is aware of and which is reasonably relevant to the performance of the Work; and (ii) any of Customer's implemented or planned measures against such risks that Customer requires DNV's personnel to adhere to.

- 4.3 Whenever DNV's performance of the Work involves visits to or work on Customer controlled facilities or sites, Customer is responsible for the adequacy, stability, safety and legal compliance of the working environment, including reasonable measures to mitigate or control relevant risks. Whenever DNV's personnel are present on Customer's facilities or sites, DNV's personnel shall adhere to Customer's HSE instructions provided according to this HSE clause. DNV or its personnel may refuse to carry out any activity, or parts of the Work, or visit any area or site, if DNV or its personnel in their sole discretion consider that relevant risks are unacceptable or not adequately addressed, contained or otherwise mitigated. Any such decision shall suspend both parties' obligations under this Agreement without any liability or penalties until the parties have agreed on how to proceed.

- 4.4 For Work where Customer requires DNV's personnel to make use of air transport in areas without local DNV offices, Customer shall provide to the relevant personnel safe transportation to and from airports and the various sites by providing: (i) transportation with cars fulfilling reasonable EU/US technical safety standards (e.g. reasonably new and intact cars, equipped with all relevant safety measures, such as safety belts front and back); and (ii) professional drivers, under written instructions with regard to safe driving, compliance with speed limits and other traffic regulations and use of safety standards (safety belts, lights, resting time, etc.).

5 Deliverables

- 5.1 Upon completion of the Work DNV shall issue any agreed report or other deliverable set out as part of the Scope of Work in the Deliverables section of the Cover Letter (a "Deliverable"). Customer shall familiarize itself with the Deliverable or the Work within a reasonable time after delivery or notification of completion of the Work. DNV may at any time correct any relevant discrepancies, errors or omissions in the Deliverable.
- 5.2 All Deliverables provided by DNV are based on the information made available by Customer to DNV up to the date of issuance of the Deliverable and Customer acknowledges and agrees that any statement made by DNV in the Deliverable is a statement at the time of issuance only.

6 Variations

- 6.1 Customer may in writing request DNV to perform additional reasonably similar work under this Agreement (a "Variation").
- 6.2 Should the Customer request a Variation, or if DNV deems any instruction by the Customer to constitute a Variation, DNV shall set out an overview of the Variation, including the impact on the time schedule and remuneration for such in the form of a Variation order (a "Variation Order"), and shall issue the Variation Order to Customer. Unless the Customer objects to the Variation Order within five (5) business days, the Variation Order shall be deemed as accepted as an integral part of this Agreement. Should the Customer object to the Variation Order, the parties shall discuss the proposed effects on the time schedule and remuneration and agree on an amended Variation Order.

7 Re-performance

- 7.1 Should either party detect any discrepancies, errors or omissions in any Deliverables or Work within twelve (12) months after delivery or completion of the Work, whichever occurs first, it shall notify the other party without undue delay and specify the nature and extent of the occurrence. To the extent such occurrence is not attributable to Customer or Customer's affiliates or subcontractors, DNV may in its own discretion rectify said discrepancies, errors or omissions or re-perform the relevant part of the Deliverable or Work within a reasonable period of time. Provided that DNV's rectification or re-performance is successful there shall be no further recourse for Customer for defective Deliverables or Work.
- 7.2 Should the notified occurrence be attributable to Customer or its affiliates or subcontractors, DNV may offer to re-perform the relevant part of the Work as a Variation.

8 Taxes and Remuneration

- 8.1 Each party is solely responsible for paying any and all taxes, duties or similar government charges to the competent public authority wherever such charges are levied and/or imposed on the activities of the party.

Any and all prices, fees, rates or remuneration are agreed as stated exclusive of any form of sales taxes, value added tax,

goods and services tax and/or any other similar taxes including any surcharges levied thereon which may be applicable.

- 8.2 Customer shall effect payment as agreed in the Cover Letter to DNV for the Work, including any Variations, to DNV's bank account stated on the invoice within thirty (30) days of the date of the invoice. Work performed by DNV shall be invoiced in accordance with the tariffs of DNV or on the basis of the price quoted in the Proposal or in the Agreement. In addition thereto, DNV will charge any extra expenses incurred in connection with the Work rendered (e.g. travelling or other expenses and, where applicable, any value added/turnover tax). Customer accepts invoices sent by electronic means.
- 8.3 In case of late payments, DNV is entitled to charge interest according to the applicable law of this Agreement, or 8% per annum pro rata, whichever is higher.
- 8.4 All payments shall, subject to Clause 8.5, be made in cleared funds, without any deduction or set-off and free and clear of and without deduction for or on account of any taxes, levies, imports, duties, charges, fees and withholdings of any nature now or hereafter imposed by any governmental, fiscal or other authority save as required by law.
- 8.5 If and to the extent Customer has to withhold taxes or other government charges according to mandatory laws, Customer shall withhold and deduct such amounts from payments to DNV and pay the amount to the competent tax authority or any other relevant governmental body, as the case may be, within the time allowed and in the minimum amount required by law. Customer shall indemnify and hold DNV harmless from any and all financial responsibility or sums found to be due arising out of the non-payment, late-payment or payment to the non-competent tax authority or any relevant governmental body.

Customer shall inform DNV about such withholding, any change in the rate or the basis of the withholding and the availability of any formal procedure resulting in an authorisation to make payment without a withholding prior to making the payment. Customer and DNV shall co-operate in completing any procedural formalities necessary for the Customer to obtain authorisation to make payment without a withholding. Within ten days of making either the withholding or any payment required in connection with that withholding, the Customer shall deliver to DNV withholding tax certificate, official receipt or evidence reasonably satisfactory to DNV that payment has been made to the competent tax authority or any other competent relevant governmental body. Customer shall cooperate with DNV and shall use reasonable efforts, at no cost of DNV, in seeking any double tax treaty relief, other exemptions and refunds available following from such withholdings.
- 8.6 If DNV is requested by Customer to allow a third party to rely on a Deliverable on terms equivalent to the Agreement and should DNV agree in writing, then subject to the requirements set out in this clause, to allow such reliance, DNV shall be paid an additional amount of 20% of the sums due under the Agreement (the "Third Party Reliance Fee") by the Customer, for each and every third party seeking to rely on the Deliverable. Customer shall procure third party's agreement to such reliance terms including the same limit and limitations of liability as set out in this Agreement (in a form approved by DNV) as a condition precedent to that third party's ability to rely on the Deliverable. Save as contemplated by this clause no person other than the Customer may rely on any Work or Deliverable.

9 Confidentiality

- 9.1 Each party ("Recipient") agrees to keep confidential any information it receives from the other party ("Disclosing Party") in the course of the Agreement which, by denotation or reasonable circumstances, is considered confidential to the Disclosing Party. The Recipient shall treat such received information with reasonable care and diligence, not disseminating or disclosing it to third parties without the Disclosing Party's prior written consent, provided however that each party may share such information with its officers, employees, affiliates, subsidiaries or subcontractors who are subject to confidentiality obligations reflecting the principles herein.
- 9.2 The obligations set forth in Clause 9.1 shall not apply to (a) DNV's reference to the Customer under this Agreement in any efforts to secure other business, unless the Customer expressly and in writing forbids such reference, or (b) to any information which: (i) was or becomes known to the Recipient from a third party without any confidentiality obligation; (ii) is or becomes generally available in the public domain through no act or failure to act on the part of the Recipient; (iii) is required to be disclosed by any competent court, governmental agency, flag state administration,

or other relevant public authority in accordance with applicable law, court order or other public regulation; (iv) has demonstrably been developed by the Recipient independently from this Agreement or (v) was already in the possession of the Recipient at the dates of its disclosure by the Disclosing Party.

- 9.3 Notwithstanding anything herein to the contrary, DNV shall have the right to store, process and use for its internal purposes any material, information, databases or know-how disclosed during, generated from or arising in connection with the provision of the Work, unless otherwise is explicitly agreed between the Parties on a case-by-case basis. The right to use is restricted to use for the purpose of the provision of services to Customer or its affiliates, for research and competence building purposes, for the purpose of development and maintenance of DNV service documents, internal instructions and methodologies, as well as for benchmarking, statistical, analytical purposes in aggregated and anonymous form.
- 9.4 DNV may assign a document classification to a Deliverable. A document classification or any agreement permitting the Customer to redistribute the Deliverable shall not thereby imply that DNV has any liability to any recipient other than Customer, and Customer will indemnify and keep DNV indemnified in respect of any and all claims, demands, proceedings, damages, costs and expenses which DNV may suffer or incur as a result of the redistribution by Customer or others of the whole or any part of a Deliverable whether or not permitted by the Deliverable's document classification. In addition to the foregoing, Customer will ensure that unless it first receives the written consent of DNV, Customer will not (and no party on its behalf will): (i) alter the content, context or original language of any Deliverables, (ii) use any Deliverable (or any part of it) in connection with any public offering, prospectus, stock exchange listing or announcement, (iii) make any Deliverable (or any part of it) available on a public website, or (iv) disseminate or distribute a Deliverable (or any part of it) to third parties for profit or in exchange for any form of direct or indirect remuneration or similar commercial purpose.
- 9.5 The obligations in this section shall survive the completion of the Work or termination of this Agreement and remain in effect for as long as the relevant information is confidential.

10 Intellectual Property Rights

- 10.1 Each party shall remain the sole owner of any of its intellectual property and rights thereto existing prior to the date or generated independently of this Agreement and, except as explicitly set out in this Agreement, nothing herein shall imply any transfer or grant of rights to any such intellectual property or rights thereto.
- 10.2 Subject to the obligations set out in the Confidentiality clause above, all intellectual property rights created by DNV in connection with this Agreement shall vest in DNV. On completion of the Work and following Customer's final payment for the Work, DNV will (i) grant to Customer a perpetual, non-transferable, non-exclusive, royalty-free licence, without the right to sub-licence to Use (as defined below) any intellectual property rights which are contained in a Deliverable and (ii) grant a licence on DNV's prevailing commercial terms to any software, database, protocol or other work (which DNV owns and makes commercially available to its other customers) which is necessary for the Customer to Use a Deliverable. "Use" in this paragraph means to use a Deliverable solely for the internal business purposes and activities of the Customer and shall not include the sale or distribution of a Deliverable or any part of it to third parties for payment or in exchange for any form of remuneration or similar purpose.
- 10.3 DNV shall have the right to use general know-how acquired in connection with the Work.

11 Force Majeure and Restrictions on Trade

- 11.1 Neither party shall be in breach of this Agreement, nor liable for any failure or delay in performance hereunder if the cause of such failure or delay is attributable to events beyond the reasonable control of the affected party, including but not limited to armed conflict, terrorist attack, civil war, riots, toxic hazards, epidemics, natural disasters, extreme weather, fire, explosion, failure of utility service, labour disputes, breakdown of infrastructure, sanctions, or any public restrictions following any of the incidents above, or any other force majeure occurrence.
- 11.2 In the event of a force majeure occurrence, the affected party shall notify the other party without undue delay of the particulars of the situation. Either party shall be entitled to terminate the Agreement with immediate effect should the force majeure occurrence last for more than thirty (30) days.

- 11.3 Both parties may terminate this Agreement with immediate effect, without any liability or penalties, if the party, its ultimate parent company or its ultimate parent company's subsidiaries or affiliates are or become subject to sanctions or penalties imposed by a national government, the United Nations, the European Union or similar organisations related to the Work which is provided hereunder, or if the Work would be considered to be illegal or in conflict with applicable law for the respective party, its subcontractors and/or its subcontractor's parent companies.

12 Indemnifications

- 12.1 Customer shall indemnify and hold harmless DNV Group from and against all claims, damages, losses and expenses in respect of: (i) Customer's breach of section 2.2, 2.3, 10.2; and (ii) claims against DNV Group relating to this Agreement made by the Customer's affiliates, subsidiaries or joint ventures outside or exceeding the limitations in the Limitation of Liability clause below. "DNV Group" shall mean DNV, as well as all its direct and indirect owners, affiliates, subsidiaries, sub-contractors, directors, officers, employees and agents as well as any other person or entity acting on behalf of DNV Group.
- 12.2 The indemnities set out above shall apply howsoever any relevant claims, damages, losses or expenses may arise and regardless whether under contract, tort (including negligence) strict liability or otherwise, except if and to the extent caused by the indemnified party's: (i) intentional and wrongful act or omission with the intent to inflict damage or injury; (ii) act or omission in disregard of a known or obvious risk which makes it highly probable that harm would follow; (iii) act or omission with conscious indifference to the outcome; (iv) any circumstances for which a party may not lawfully limit its liability under this Agreement's applicable law.
- 12.3 Each party shall notify the other party without undue delay upon becoming aware of any incident likely to give rise to a claim against the other party in relation to this Agreement.

13 Limitation of Liability

- 13.1 Neither party excludes any liability arising from its own fraud or fraudulent misrepresentation.
- 13.2 Neither party shall in any way be held liable towards the other party for any of the other party's or its affiliates' consequential or indirect loss, including but not limited to interruption or loss of business, contract or revenue, loss of goodwill, loss of profit, loss of production, wasted overhead, cost of substitute equipment, downtime costs or other special, punitive or other forms of indirect losses, howsoever such may arise, whether under contract, tort (including negligence), strict liability or otherwise.
- 13.3 Except for in case of fraud or fraudulent misrepresentation or other similar circumstances for which a party may not lawfully limit its liability under this Agreement's applicable law, DNV's total maximum liability (and whether in contract, tort including without limitation negligence, breach of statutory duty, under any indemnity or otherwise howsoever) arising out of or in relation to this Agreement and the performance or non-performance of any Work or Deliverables shall be limited to a sum equal to ten times the remuneration paid to DNV under this Agreement, up to a maximum aggregate sum of USD 300 000 (three hundred thousand US dollars).
- 13.4 No claims shall be set forth later than twenty-four (24) months following the delivery of the Deliverables, or if none, notice of the completion of the Work.

14 Insurance

- 14.1 Both parties shall maintain adequate insurance coverage for general and professional liabilities and their relevant personnel under the Agreement, for such amounts and on such terms as are standard in their respective industries and with underwriters who are in good standing.

15 Fair Business Practice, Anti-bribery and Compliance

- 15.1 The parties shall conduct their respective business activities in a fair, ethical, and lawful manner in accordance with generally accepted codes of conduct (including but not limited to the DNV code of conduct), avoiding any unacceptable activities, including but not limited to acceptance of or acquiescence in extortion, bribery, use of child labour, breach of human rights, or the imposition of unreasonable work conditions.
- 15.2 Customer shall indemnify and hold harmless DNV from any breach of this clause.

16 Term and Termination

- 16.1 This Agreement shall come into effect on the date of the signatures on the Cover Letter and shall remain in full force and effect until all Deliverables are delivered, or the Work is otherwise

completed and paid for in full, or terminated earlier by the parties' mutual agreement or in accordance with the subsection below.

- 16.2 Each party may terminate this Agreement by written notice to the other party under the following circumstances: (i) if the other party commits a material breach (including any failure to make payment of any amount properly due) of this Agreement and fail to rectify such within ten (10) working days after receipt of the other party's written notice; (ii) if the other party becomes insolvent, is unable to pay its debts as they fall due, or is subject to bankruptcy proceedings, receivership, dissolution, liquidation, winding-up or otherwise discontinues business; or (iii) for convenience after serving the other party a written notice thirty (30) days prior to termination.
- 16.3 If Customer terminates the Agreement for its convenience, DNV shall be entitled to full compensation for the Work carried out prior to the termination and for all reasonable termination costs.
- 16.4 On termination or expiry of the Agreement all rights and obligations of the Parties shall cease immediately, except (i) the accrued rights and obligations of the Parties at the date of termination or expiry, and (ii) the continued rights and obligations of the Parties under those clauses which are expressed to survive termination or expiry and any provisions of the Agreement necessary for the interpretation or enforcement of the Agreement (including, without limitation, clauses 9, 10.2, 12, 13, 15 and 17).

17 Law and Jurisdiction

- 17.1 This Agreement shall be governed by and construed exclusively in accordance with the laws of **The Netherlands**, without regard to principles of conflicts of law.
- 17.2 The parties shall use their reasonable efforts to resolve any claim or dispute arising in relation to this Agreement by negotiations within a reasonable time. Should the parties fail to resolve any claim or dispute by negotiations, the dispute shall be exclusively subject to the jurisdiction of the courts of **Arnhem, The Netherlands**.